

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT NAME
HON. YOLANDA V. TORRES

Date: July 27, 2026

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court might also make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 442, fn. 1)

If all counsel submit on the tentative ruling and do not desire oral argument please advise the courtroom clerk or courtroom attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal.R. Ct. 3.132.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

3	Bear Capital partners, Inc. v. Smith 2025-01508678 Demurrer to Cross Complaint CMC	Plaintiffs/Cross-Defendants' Demurrer to the Cross-Complaint is MOOT. Plaintiffs/Cross-Defendants Bear Capital Partners, Inc., in its Capacity as the Manager of 2330 E. 15th St., LLC; or alternatively, in its Derivative Capacity on behalf of 2330 E. 15th St., LLC; and Ronald L. Meer move for an order sustaining their demurrer to the cross-complaint of Defendants/Cross Complainants Michael Smith, John Kling and 2003 Newport, LLC. In lieu of filing an opposition, Defendants/Cross Complainants timely filed a first amended cross-complaint on 6/4/26. (See Code Civ. Proc., §§ 472, 1005.) The demurrer is moot and therefore taken off-calendar.
4	Morgan v. Apex Heating and Air, LLC. 2025-01511413	Plaintiffs Steve Morgan and Sonia Tavakoli's motion for leave to file a First Amended Complaint is CONTINUED. The Court shall select a new date on 7/27/26. Plaintiffs have not submitted proof of service showing that the moving papers were served on Defendants. (See Code Civ. Proc. § 1005, subd. (b); Cal. Rules of Court, Rule

	Motion for Leave to File 1st Amended Complaint CMC	3.1300, subd. (c).) No response or opposition was filed; therefore, the court cannot deem this defect waived. Plaintiffs are ORDERED to file a Proof of Service showing that the moving papers were served on Defendants, at least 5 court days before the CONTINUED hearing.
5	SBS Trust Deed Network v. Estate of Elaine Thomas 2025-01338514 Motion for Leave to File Cross Complaint	Bourbon Holdings LLC's ("Bourbon Holdings") motion for leave to file a cross-complaint against Randall Sharp is GRANTED. The proposed cross-complaint against Sharp is compulsory since it alleges related causes of action against Sharp. (See Code Civ. Proc. §426.30. subd. (a).) The proposed cross-complaint asserts causes of action for breach of contract and declaratory relief arising from the same written assignment agreement and foreclosure sale surplus proceeds that form the basis of Sharp's Cross-Complaint against Bourbon Holdings and thus satisfies the criteria in section 426.30, subdivision (a). Sharp contends the Motion was not filed in good faith, however, Sharp's evidence does not support a finding that Bourbon Holdings is not acting in good faith. Further, granting leave to file a cross-complaint will not be prejudicial to Sharp since no trial date has been set, discovery remains open, and the case is at an early stage. Moving party to give notice.
6	Mulder v. Abab 2024-01436435 Motion to for Leave to file and serve 1st Amended Answer	The motion of defendants OC Lux Transportation LLC and Mike Abab for an order granting them leave to file a first amended answer to the complaint of plaintiffs David and Jianfen Mulder is GRANTED. Defendants are to file and serve the original first amended answer within five Court days. Discussion. Defendants move for an order granting them leave to file a first amended answer that contains a new affirmative defense for sudden emergency. Plaintiffs oppose the motion, contending that defendants are unfairly attempting to substantially change the scope of the case after nearly two years without explanation. Amendment to a pleading may be permitted by a court on such terms as may be just after notice to the adverse party. Code Civ. Proc. § 473(a)(1). If the purpose or grounds for the amendment are not evident from the nature or content of the amendment, a declaration containing the necessary information may be attached to show the facts that would support filing the amendment. See <i>Plummer v. Superior Court</i> (1963) 212 Cal.App.2d 841.